

24NNCV01819 24NNCV01819

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-09-14

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Case Number: 24NNCV01819 Hearing Date: September 14, 2026 Dept: X

AN YING POWELL, et al. vs HONG WEI WONG, et al.

The Court has reviewed the ex parte application. The application is denied.

Defendant's application seeks relief pursuant to rule 3.1332(c) and asserts good cause under subdivisions (c)(1), (3), (6), and (7). It states that the parties have exchanged written discovery and taken several depositions, but that the depositions of Angel Israel, N.P., and percipient witness Scott Atay, M.D., remain outstanding, and that Dr. Atay has not yet been subpoenaed. It further states that defense counsel has three other trials set — one continued Orange County matter (now set February 16, 2027), a Los Angeles trial set September 28, 2026, and another set for October 6, 2026. The application asserts "irreparable harm" and that "[t]here is no time for a noticed motion before Trial." All parties have signed a joint stipulation to the continuance, and the application represents that this is the first continuance request. The supporting declaration of Christina E. Batshoun repeats these representations. It does not identify any witness who is unavailable because of death or illness and states no emergency.

None of the invoked subdivisions of rule 3.1332(c) are satisfied. No witness or counsel is unavailable through death, illness, or excusable circumstances; the discovery ground is unsupported by any showing of diligence in a case nearly 29 months old; and there has been no significant, unanticipated change in the case's status. Counsel's engagement in other trials around the time of this trial is a discretionary factor to be weighed, not good cause in itself, and a congested trial calendar without actually being engaged in trial does not establish good cause. Moreover, the parties' stipulation and their claim of no prejudice do not supply the required good cause. Accordingly, the application is denied, and the October 13, 2026 trial date remains.

Unless waived by the parties, moving party is to give notice.